THE STATE
versus
WALTER MZEMBI

HIGH COURT OF ZIMBABWE
**CHIKOWERO J**
HARARE, 28 January, 2 and 17 February, 3, 4 and 27 March and 13 May 2026.

Assessors: Mr *Mpofu*
: Mr *Mhandu*

**Criminal Trial**

*B Murevanhema* with *A Mupini,* for the state
*E Samundombe* with *TK Mandiki,* for the accused

CHIKOWERO J:

[1] The accused was indicted to this court for trial on a charge of criminal abuse of duty as a public officer as defined in S174 (1)
(a) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] (the Criminal Law Code)

[2] He served in the Government of National Unity as a Cabinet Minister in the Ministry of Tourism and Hospitality Industry during the period 2011 to 2014.

[3] The indictment reads:

> "…Walter Mzembi a male adult …is guilty of the crime of criminal abuse of duty as a public officer as defined in S 174(1) (a) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] and whose duties are as appears in the attached annexure to the indictment and in the exercise of those duties which required Walter Mzembi to manage the property of the Ministry procedurally correct during his tenure of office as follows:
> In terms of Part 11 Section 6(2) (b) of the Public Finance Management Act the Ministry seeks Treasury authority and approval before initiation of that action.

> In terms of Treasury Instruction 2006-2012 the assets may be disposed through among other ways by donation to public entities after formal board of survey proceeding have been complied with depending on the request of the entity.
> The entity or unit receiving the donation must make formal request showing interest in the donation outlining the list of the item (sic) they are interested in prior to the donation.
> Government assets are not loaned or donated to private entities. The accused person unlawfully and knowingly acted contrary to or inconsistent with his duties aforesaid as public officer, that is to say, he donated 4 sets of public viewing area screens valued at US $200.000 to the private entities that is Zion Christian Church, United Family International Church and Prophetic Healing and Deliverance Ministries without following the laid down procedures mentioned above by:
> (a)Donating one set of public viewing area screens to United Family International Church
> (b)Donating two sets of public viewing area screens to Prophetic Healing and Deliverance Ministries.
> (c)Donating one set of public viewing area screen to Zion Christian Church.
> (d)The accused did not seek treasury authority and approval to donate the aforesaid public viewing area screens to private entities as provided under section 6(2)(b) of the Public Finance Management Act [*Chapter22:19*]
> In so doing Walter Mzembi abused his duty as a public officer to show favour to Zion Christian Church, United Family International Church and Prophetic Healing and Deliverance Ministries and disfavour to the Ministry of Tourism and Hospitality Industry.''

[4] The annexure to the indictment sets out the functions of the accused as the then Minister of Tourism and Hospitality Industry .Those functions were assigned by the President in terms of S 104 (1) of the Constitution .The functions are firstly, being accountable and to supervise the performance of State Enterprises and Parastatals .Secondly, the appointment of the board of the Zimbabwe Tourism Authority. Thirdly to develop, implement and review policies and legislation on tourism in consultation with other stakeholders. Fourthly, to oversee the development, implementation and review of the National Tourism Master Plans and Strategies. Finally, to coordinate and implement international tourism policies, programmes and protocols with regard to the United Nations World Tourism Organization, World Travel and Tourism Council and other relevant international bodies.

[5] In a nutshell, what the prosecution sought to prove was that the accused criminally abused his duty as the Minister of Tourism and Hospitality Industry (and hence a public officer) by donating the public viewing area screens to the three churches without following laid down procedures .Further, that in doing so the accused showed favour to Zion Christian Church (ZCC),United Family International Church (UFIC) and Prophetic Healing and Deliverance Ministries (PHD).The State alleged that the accused made the donations to ZCC ,UFIC and PHD Ministries on 27 July 2011,30 March 2012 and 22 October 2014 respectively.

[6] In outlining his defence, the accused made the following averments. Firstly, that as the Minister of Tourism and Hospitality Industry his duties involved the oversight of the Ministry's operations as a political appointee. Secondly, that the material time was the height of the country's tourism drive hence the setting up of an Inter-Ministerial Cabinet Committee whose duties was to drive the national tourism initiatives. Thirdly, it was the decisions of the Inter Ministerial Cabinet Committee which the accused as the head of the Ministry of Tourism and Hospitality Industry was tasked to implement. Fourthly, that the donation of the public viewing area screens was pursuant to a Cabinet resolution.

[7] The essential elements of the crime of criminal abuse of duty as a public officer have been traversed in case law. See *Mukutu* and *Anr* v the State SC 05/26 at pp 20-21, *S* v *Taranhike* 2018(1) ZLR 399(H) at 403 A-E and *Kasukuwere* v *Mujaya* N.O and Ors 2019(3) ZLR 421 (H). There are four essential elements of the crime of criminal abuse of duty as a public officer. First, the accused must be a public officer. Second, the accused must have engaged in conduct that is inconsistent with his or her duty as a public officer. Third, the accused must have acted intentionally in the act or omission. Finally, the purpose of the conduct must be to show favour or disfavor to any person.

[8] The only essential element of the crime that the State managed to prove was that the accused was a public officer. That in any event was common cause because the accused was a Minister at the material time and hence a public officer going by the definition in S 1 69 of the Criminal Law Code.

[9] William Little, HW Fowler and Jessie Coulson in THE SHORTER OXFORD ENGLISH DICTIONARY ON HISTORICAL PRINCIPLES Volume 1 at p 594 present three meanings of the word "donation." They are

> "1. The action or faculty of giving, presentation, grant.2. Law. The action or contract by which a person transfers the ownership of a thing from himself to another, as a free gift …3. that which is presented, a gift …"

[10] Since the prosecution alleged that the accused donated the public viewing area screens to the three Churches, this Court must assess the evidence in order to determine whether the accused transferred the ownership of the public viewing area screens in question from the Government of Zimbabwe to the three Churches, as free gifts .This assessment is necessary

because there could not have been a donation if ownership of the public viewing area screens remained vested in the Government of Zimbabwe. In other words there would not be free gifts, in the form of the public viewing area screens to the three Churches to sustain the indictment if there was no donation of those screens in the first place.

[11] The state produced a letter which we marked as exhibit S6. We reproduce it in full.

"All communication should be addressed to
The Secretary for
Tourism and Hospitality Industry
Telephone: 770897/759391
Telegraphic address:
'TOURISMT'
Fax: 702054
TH/P/2/2
TH/A/49
22 October 2014.

Minister of Tourism and Hospitality Industry
7th Floor John Boyen
Building Cnr Innez and Speke Avenue
P. O Box
CY 1718
Causeway Harare

Prophet Walter Magaya
Prophetic Healing and Deliverance Ministries

Re: LOANING OF TWO (2) PVA SCREENS

The above subject matter refers.

This letter serves to confirm the loaning of two PVA screens to Prophetic Healing and Deliverance Ministries under your revered leadership in view of the upcoming convention on the 7th of November 2014. Pursuant to religious tourism that my Ministry is superintending, and the invitation thereof extended to me to attend the convention on the 7th of November 2014, I have assigned the Deputy Minister, Rtd Brig General W Kanhanga to attend on my behalf as I will be away on government business. However, it is my desire to take part in future conventions.

By copy of this letter to the Hon Deputy Minister and the Secretary for Tourism and Hospitality Industry, they will assist with the necessary processes and procedures to release the two televising screens. Installation and safety of the assets will be the responsibility of Prophetic Healing and Deliverance Ministries.

Yours sincerely,

(signed)

Eng W Mzembi (MP)

MINISTER OF TOURISM AND HOSPITALITY INDUSTRY

CC: Hon Rtd Brig W

Kanhanga (MP)

Deputy Minister of Tourism and Hospitality Industry

:Ms F R Nhekairo
Secretary for Tourism
and Hospitality
Industry"

[12] Exhibit s6 is not evidence that the accused donated the two public viewing area screens to PHD Ministries. Zvinechimwe Ruvinga Churu was the State's first witness. At the time of the trial he was the Deputy Chief Secretary – Administration, Finance and Human Resources in the Office of the President and Cabinent. His duties include managing the performance of Ministries. Churu was a fair witness because he said he was unable to comment on exhibit s6 as he was not privy to the context under which it was written. Thokozile Chitepo was also a fair witness for the same reason as Churu. Although she had retired from the Office of Permanent Secretary in the Ministry of Tourism and Hospitality Industry by the time that she testified for the state, this witness was candid with the court. She was clear that she too could not comment on the allegations that the accused donated the public viewing area screens to the three Churches because she was not the Permanent Secretary in the Ministry of Tourism and Hospitality Industry during the period covered by the indictment. In short, both Churu and Chitepo were not relevant witnesses for purposes of assisting the State to prove the charge preferred against the accused. For reasons unknown, the state chose not to call Kanhanga and Nhekairo to testify on the circumstances of the release of the public viewing area screens to the three Churches. The former was the Deputy Minister and the latter was the Permanent Secretary as reflected in exhibit s 6. The State's failure to call them as witnesses was fatal to its case.

[13] The State also produced a record of the hand over take over of the set of the public viewing area screen between the Ministry of Tourism and Hospitality Industry and the ZCC. It reads:

"All communications should be addressed to "The Secretary For Tourism and Hospitality Industry" Telphone: 770897/759391 Telegraphic Address: 'TOURISMT' Fax: 702054

Ministry of Tourism and Hospitality Industry
9th Floor ss Tourism House Samora Machel
P O Box CY 1718 Causeway Harare

27 July 2011
Zion Christian Church

Mbungo
Masvingo
Ref: HANDOVER/TAKEOVER NOTES FOR EQUIPMENT TO THE ZION CHRISTIAN CHURCH BY THE MINISTRY OF TOURISM AND HOSPITALITY INDUSTRY
The above matter refers.
Listed below is the equipment handed over to the Zion Christian Church by the Ministry of Tourism and Hospitality Industry.
1 Public Viewing Area System
1 Electric Box
1 Amplifier
1 mixer s/No 0181992
1 VIDEO SYNCHRONIZER S/NO:0C1006SN410
1 computer monitor S/NO: T9RKRDNDH4Q5NNG
1 YAMAHA CORDED MICROPHONE
2 CORDLESS MICROPHONES
1 computer keyboard S/NO: 0006034718014
1 mouse S/NO: 100307669
1 shelf cabinet
2 speakers
GF – 30 DIESEL GENERATOR 400 VOLTS S/NO: Q1006014

PERSON TAKING OVER: TAFUMA FUNDIRA (signed)
28-103076W66
Z C C MEDIA
MANAGER
PERSON HANDING OVER: FARAI NYAKAWURU 34040731R3C (signed) ADMINISTRATION OFFICER
WITNESS: DZIKAMAI RUKUNI 04-128681W04 (signed) (FOR ADMINISTRATION OFFICER)"

This exhibit bears the Ministry of Tourism and Hospitality Industry's Administration Officer's date stamp of 27July 2011.

Again, there is nothing on the face of exhibit s 7 tending to prove that the accused donated the equipment listed therein to ZCC. If anything, everything about the exhibit shows that it was the Ministry itself, rather than the accused, which handed over the equipment to ZCC. The stationery used, heading and para 2 of the exhibit are pertinent in this regard. So too is the involvement of two Ministry officials from the administration department as well as the reflected official date stamp which we have already referred to.

[14] Nyakawuru's evidence was admitted in terms of s 314 of the Criminal Procedure and Evidence Act [*Chapter 9:07*]. The relevant portion of the evidence reads:

> "He received an instruction from the accused's office through his director that he distribute public viewing area screens to various entities which amongst others included Zion Christian Church, United Family International and Prophetic Healing Deliverance."

Nothing turns on this evidence because the witness did not say that he directly interacted with the accused.

[15] The State also produced a bundle of documents containing information on the Ministry of Tourism and Hospitality Industry's public viewing area equipment which was procured in 2010 by the Government of Zimbabwe through the Ministry of Finance and Economic Development. We marked the bundle as exhibit s 8. At p18 thereof is a Memorandum addressed to the accused by Ms M Mukahanana -Sangarwe. It is dated 23 May 2013. Sangarwe was the Permanent Secretary of the Ministry of Tourism and Hospitality Industry at the time. We reproduce that memorandum.

> "MEMORANDUM
>
> TO: Minister of Tourism and Hospitality Industry Hon Eng W Mzembi (MP)
>
> FROM: Secretary for Tourism and Hospitality Industry Ms M Mukahanana – Sangarwe
>
> DATE: 23 May 2013
>
> STATUS OF PUBLIC VIEWING AREA (PVA) TELEVISION SCREENS
>
> Please, find tabled hereunder the current status and the proposed allocation of the 40 Public Viewing Area (PVA) Television Screens to the 7 rural provinces and other designated recipients:

| Province | Number |
|---|---|
| Manicaland | 2 |
| Mashonaland Central | 2 |
| Mashonaland East | 2 |
| Mashonaland West | 1 |
| Matebeleland North | 1 |
| Matebeleland South | 2 |
| Midlands | 2 |
| **Total** | **12** |

| Other Allocations | Number | Remarks |
|---|---|---|

| | | |
|---|---|---|
| ZTA (in 2011) | 10 | for installation in various centres |
| ZTA (for UNWTO) | 1 | Vic-Falls for the UNWTO General Assembly Count down |
| Mashonaland West (2010) | 1 (Murombedzi Business Centre) | |
| Matebeleland North | 1 (Binga) | |
| North Zion Christian Church (Mbungo) | 1 (At Mbungo Church Premises, Masvingo Province) | |
| Musvosvi village | 1 (Musvovi Business Centre, Masvingo, Masvingo Province) | |
| Manyame Air Base | 1(Manyame Air Base Sports ground) | |
| United Family International Church | 1 (Harare, City Sports Centre) | |
| University of Zimbabwe | 1 (Vice Chancellor's Office, Harare) | |
| Others | 10 (Reserved for Ministry use) | |
| Total | 28 | |
| Thank you | Approved signed 23/05" | |

The state did not produce Sangarwe to explain her memorandum. It was necessary for her to testify because she authored that memorandum. No reasons were given for her absence in court either as a state witness or a co-accused given that she authored the memorandum on 23 May 2013 reflecting that ZCC and UFIC had been allocated one public viewing area screen each by that date. It seems to us that Sangarwe would have been a material witness to assist the court in determining whether the appellant donated the public viewing area screens to ZCC and UFIC. It was her duty, as the Permanent Secretary, to manage government property entrusted to the Ministry of Tourism and Hospitality Industry. The state chose not to call her at its peril.

[16] Page 3 of exhibit s8 is a certificate of assets for the financial year which ended on 31 December 2015. It was prepared and signed by Ms F R Nhekairo in her capacity as the Permanent Secretary for the Ministry of Tourism and Hospitality Industry. She addressed it to the Permanent Secretary for Finance and Economic Development (Accountant General) at the

New Government Complex in Harare. The certificate, which is dated 8 March 2016, was copied to the Comptroller and Auditor General for the attention of Mr G Maburira. It was received by one Choga on behalf of the Audit Office on 11 March 2016. The certificate itself reads:

> "I hereby certify that in accordance with Treasury Instruction 2004 my office has physically checked all assets in the Ministry of Tourism and Hospitality Industry, Head Office, once during the financial year 2015. I am also satisfied that the records have been property maintained. The Ministry physical count agrees with these records."

[17] The certificate of assets is adequate evidence that the public viewing area screens were not donated to the three churches either by the accused or, although this is not necessary for purposes of this judgement, by the Ministry of Tourism and Hospitality Industry itself. It is unnecessary for us to give a name to that which was done, and by whom, because the indictment is that the accused intentionally and unlawfully acted contrary to or inconsistent with his duty as a public officer by donating the public viewing area screens to the three churches without following due process. Nhekairo certified, on 8 March 2016, that the screens were still government property and were all accounted for as such well knowing that the screens were with ZCC, UFIC and PHD Ministries since 27 July 2011, 30 March 2012 and 25 October 2014 respectively. We add that all the screens were recorded on the Ministry of Tourism and Hospitality Industry Inventory Sheets. They were and still remain government property. This dovetails with Chitepo's evidence that:

> "In 2017 an asset check was made by Nhekairo (my predecessor) and she confirmed the whereabouts of those assets that is they were with the churches. This was just before I took over in 2017."

Chitepo was no longer in office when she testified. She was testifying in 2026 on an asset check done more than a decade earlier. Her only error, due to passage of time, was in relation to the year when the asset check was affected.

[18] Despite her being the author of the certificate of assets, Nhekairo was not produced as a witness by the prosecution. Again, no reasons were tendered for prosecuting the matter in such a manner. But the certificate of assets confirms the collapse of the state's case against the accused.

[19] We pause to say this. Richford Lovemore Nyamakura, the Finance, Administration and Human Resources Director in the Ministry of Toursim and Hospitality Industry, also testified for

the prosecution. His evidence also reveals that it was necessary for the state to call the Permanent Secretary who gave instructions to this witness to distribute the public viewing area screens to the three churches. Beyond that, his evidence did not assist the prosecution to prove its case against the accused.

[20] Eric Chacha, the investigating officer, began and ended his testimony without indicating whether he interviewed Sangarwe and Nhekairo and, if so, what he uncovered as a result of lines of investigation revealed by such interviews. What comes out of Chacha's testimony is that he conducted his investigations on the basis that the burden was on the accused to prove his innocence. Needless to say, that is not the way to do things. An accused is presumed to be innocent until he is proven guilty. It is for the state, by placing adequate evidence before the court, which has the burden to prove the guilty of the accused beyond reasonable doubt.

[21] Admire Mango, Promise Tichaona Chikuni and Samson Pasipamire sought to usurp the function of this court. They are, respectively, the Senior Overseer with PHD Ministries, UFIC Pastor and Administration Officer with ZCC. We have no difficulty with the admission of their evidence in terms of s 314 of the Criminal Procedure and Evidence Act [*Chapter 9:07*] in so far as that evidence is a narration of the facts as they unfolded leading up to the ultimate receipt of the public viewing area screens by the three churches. But we do not accept, at this stage of the proceedings, that it is their function to call that which occurred "donations." The three witnesses are not the court. It is for the court, after assessing their evidence in conjunction with the entirety of the evidence on record, to decide whether that which happened were donations. Even the accused, in outlining his defence, fell into the same mistake of averring a donation where there was none. Further, if the accused had committed the crime the subject of the trial, there would have been nothing precluding the state from recovering the screens and producing them as exhibits.

[22] In substance, the accused's defence is not difficult to comprehend. It is this. First, it was not his duty, as the Minister, to account for government property. Rather, the boot was on the Permanent Secretary's foot. As this judgment has endeavored to demonstrate, despite no oral testimony having been led from Sangarwe and Nhekairo, the latter, through the certificates of assets, accounted for the public viewing area screens the subject of the indictment. Second, the

other leg of his defence, that he dealt properly with the property to spearhead the national religious tourism drive, was not shown to be beyond reasonable doubt false. For instance, exhibit s 6 is clear in this regard. The accused is the only witness privy to the facts of the matter who gave oral evidence. That evidence was corroborated by the exhibits produced by the state. As for the state itself, it deliberately refrained from leading oral evidence from persons acquainted with the facts of the matter. The result is that the accused's defence was not rebutted by the state.

[23] In the result, the state has failed to prove its case against the accused beyond reasonable doubt.

VERDICT: The Accused is found Not Guilty and is Acquitted.

**CHIKOWERO J:……..**

*The National Prosecuting Authority*, the state's legal practitioners
*Samundombe and Partners*, Accused's legal practitioners